

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, President;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, hereinafter referred to as "the complainant";

The defendant: Company Y, hereinafter referred to as "the defendant";

1 The new internal regulations of the DPA following the amendments made to the LCA by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA) came into effect on June 1, 2024.

It only applies to complaints, mediation files, requests, inspections, and proceedings before the Contentious Chamber initiated from this date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>

Files initiated as in this case before June 1, 2024, remain subject to the provisions of the internal regulations (<https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur.pdf>) as it existed before this date.

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I.

Facts and Procedure

1.

The subject of the complaint concerns the failure to delete the complainant's personal professional email address following his dismissal by the defendant.

2.

The defendant is a company active in the real estate sector, notably acting as a property manager.

3.

The defendant states that it dismissed the complainant in October 2020, without notice. The defendant characterizes this cessation of the complainant's activities as abrupt and contentious. According to the defendant, it occurred without the preparation of files or handover to a successor.

4.

The parties disagree on the reasons for this dismissal. The defendant highlights a context of takeover and, on this occasion, the discovery of professional errors committed by the complainant. The complainant formally denies any wrongdoing on his part. He indicates that at the time of the takeover, 7 months before his dismissal, he was informed that due to his age and the proximity of his retirement, he was not part of the company's future and that his files would be gradually taken over by colleagues from a sister company of the defendant. From that moment on, the complainant states that his work was systematically hindered by the contradictory directives he received from the new management.

5.

The defendant reports that the complainant managed about thirty residences before his dismissal and

played a key role regarding the legal obligations of the property manager as well as in the functioning of the company. His tasks were numerous (financial management of properties, administrative management of properties, and ensuring the proper maintenance of these properties), regularly spanning several years. In the performance of his duties, the complainant was in direct contact with the co-owners of the properties he managed.

6.

The defendant further states that it had no choice but to retain the complainant's email address after his dismissal in order to ensure the continuity of the company's activities, notably the holding of general meetings of co-owners that the complainant was responsible for and the postponement of these meetings during the COVID-19 pandemic in accordance with the temporarily applicable legal provisions at that time.

7.

The defendant indeed emphasizes that the events took place, in addition to a context of resuming its activities, during a health crisis related to the COVID-19 pandemic during which the processing of received emails was even more essential (in comparison

2 Law of December 20, 2020, containing various temporary and structural provisions regarding justice in the context of the spread of the coronavirus COVID-19, M.B., December 24, 2020.

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with other non-electronic means of communication) to fulfill the role of syndic and respond to the requests of the co-owners.

8.

On November 11, 2020, the complainant sent a registered letter to the defendant requesting the cessation of the use of his email box [professional email address of X] based on the decision on the merits 64/2020 of September 29, 2020, of the Contentious Chamber of the APD.

9.

On December 3, 2020, the complainant filed a complaint with the APD against the defendant. The complainant, having been dismissed in early October 2020 (point 3), denounces that as of December 3, 2020, the defendant was still sending emails from his address without informing the senders of his departure from the company. The complainant also points out that in many residences, his name still appeared on information boards as well as on numerous documents, which harmed his reputation. The complainant was indeed no longer able to perform his duties since he had been dismissed nearly two months earlier.

10.

On December 16, 2020, the complainant confirms to the SPL that the defendant has refrained from responding to his request of November 11, 2020 (point 8).

11.

On January 5, 2021, the complaint is declared admissible by the SPL based on Articles 58 and 60 of the LCA and the complaint is transmitted to the Contentious Chamber under Article 62, § 1 of the LCA.

12.

On February 2, 2021, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation is transmitted to the Inspection Service (SI).

13.

On June 30, 2021, the investigation by the Inspection Service is concluded, the report is attached to the file, and it is transmitted by the general inspector to the President of the Contentious Chamber (Art. 91, § 1 and § 2 of the LCA).

14.

The investigation report from the SI is based in particular on two technological reports dated March 18 and June 14, 2021, and makes the following findings:

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Finding 1: The SI concludes that the defendant did not comply with Articles 5.1.b (principle of purpose), 5.1.c (principle of minimization), and 5.1.e (principle of limited retention) of the GDPR3 since as of March 23, 2021, more than 5 months after the complainant's dismissal, the email address

[professional email address of X] of the complainant was still active/contactable. An automatic response message is associated with this email address, which mentions that the complainant has left the company, that the email address will soon be deactivated, and that the email address to be used in the future is [generic email address].

3 The SI specifically refers to decision 64/2020 of the Contentious Chamber.

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Finding 2: The SI finds that there has been a breach of Article 6.1 of the GDPR by the defendant since the retention of the disputed email address for more than 5 months (from October 2020 - dismissal of the complainant - to March 2021 at a minimum - investigation reports) is excessive. No lawful basis - not even legitimate interest as defined in Article 6.1.f) which allows for the continuation of processing for a period of 1 to 3 months depending on the specific circumstances of the case - justified the continuation of processing this data during the entire period.

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Finding 3: The SI finds that the defendant violated the provisions of Articles 12.3, 12.4, and 17.1 of the GDPR by failing to respond to the letter of November 11, 2020, from the complainant in which he requested the deletion of his professional email address (Articles 12.3 and 12.4) as well as by not proceeding with the deletion (Article 17.1 of the GDPR).

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Finding 4: The SI finally notes that the complainant copied the APD on the letter he sent on June 8, 2021, to the defendant in which he requested that the latter cease using his private phone number as a contact number for an alarm call center. The SI notes that no action is requested by the complainant from the APD and that in any case, the one-month response period to his deletion request had not elapsed by the date of the closure of its report. In accordance with Article 64, § 2 of the LCA, the SI does not consider it appropriate to continue its investigation regarding this last aspect.

15.

On July 27, 2021, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the file can be dealt with on the merits.

16.

On the same date, the concerned parties are informed of the provisions as set out in Article 95.2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendant's response conclusions is set for September 22, 2021, that for the complainant's reply conclusions for October 14, 2021, and that for the defendant's reply conclusions for November 5, 2021.

17.

On September 13, 2021, the defendant's counsel requests a copy of the file (Art. 95, §2, 3° LCA), which is transmitted to them on September 16, 2021.

18.

On the same date, the defendant agrees to receive all communications related to the case electronically.

19.

On September 28, 2021, the Contentious Chamber receives the defendant's response conclusions. The defendant having submitted summary conclusions, their arguments are summarized below (points 21 and following).

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20. On October 13, 2021, the Dispute Chamber received the reply conclusions from the complainant. The complainant refutes any legitimate interest of the defendant in continuing to process his personal email address, as it would have sufficed for the property manager to communicate to the co-owners, via the company's generic email address, that the property manager had changed and to provide them with the contact details of the complainant's successor. The specific factual circumstances invoked by the defendant, particularly to justify the failure to respond to his deletion request within the prescribed period (1 month) set by the GDPR, are also dismissed by the complainant.

21.

On November 5, 2021, the Dispute Chamber received the reply conclusions from the defendant.

22.

The defendant contests any violation of Article 5.1. b), 5.1. c), and 5.1. e) of the GDPR (finding 1 of the SI) as well as Article 6.1 of the GDPR (finding 2 of the SI). She emphasizes that she continued to process the complainant's email address data based on Article 6.1. f) of the GDPR, keeping the associated email inbox open in order to maintain her activity and professional relationships with the concerned co-owners following the complainant's abrupt departure, for a duration not exceeding what was reasonable given the specific circumstances of the case. These same elements are invoked to explain her lack of response (not contested) to the complainant within the time frame of Articles 12.3 and 12.4 of the GDPR (finding 3 of the SI). Finally, regarding "finding" 4 of the SI, the defendant indicates that she made sure that the diversion of emergency calls from the alarm systems to the complainant's mobile phone number had indeed been removed.

II. Motivation

II.1. Preliminary Remark

23.

It emerges from the parties' conclusions that the complaint filed is situated within a particularly conflictual climate that finds its source even before the complainant's dismissal by the defendant. The Dispute Chamber wishes to emphasize in this regard that it is not within its competence to substitute itself for the competence of other instances, such as judicial ones, competent in labor law disputes in particular.

II.2. Regarding Compliance with the Principles of Purpose (Article 5.1. b) of the GDPR), Minimization (Article 5.1. c) of the GDPR), and Limited Retention (Article 5.1. e) of the GDPR)

II.2.1. The Parties' and the SI's Perspective

24.

In its investigation report, the SI notes, as just mentioned, that as of March 23, 2021, more than 5 months after the complainant's dismissal, the email address [professional email address of X] of the latter is still active/contactable. An automatic reply message is associated with this address stating that the complainant has left the company (i.e., the defendant), that the email address will soon be deactivated, and that the email address to be used in the future is [generic email address]. The SI also notes that as of June 14, 2021, the address [professional email address of X] is no longer reachable, although it is likely that it still exists (pages 7 and 9 of the SI report).

25.

The complainant shares the SI's finding.

26.

As previously mentioned in the statement of facts and procedural history, the defendant contests any violation of Articles 5.1. b), 5.1. c), and 5.1. e) of the GDPR. She emphasizes that she continued to process the complainant's email address data, keeping the associated email inbox open, in order to maintain her activity and professional relationships with the concerned co-owners following the complainant's abrupt departure, in compliance with the principles of purpose and minimization for a duration not exceeding what was reasonable. She points out that while the Dispute Chamber has previously indicated that this period should ideally not exceed 1 to 3 months, it nonetheless, using the term "ideally," left open the possibility of a longer period that concrete circumstances could justify. The defendant highlights the context of the health crisis related to the COVID-19 pandemic, the absence of a transition and handover period related to the abrupt departure of the complainant, the recent resumption of the company, as well as the fact that the complainant was her only full-time employee for a significant number of residences.

II.2.2. The Perspective of the Dispute Chamber

27.

As the data controller, the defendant is required to comply with data protection principles and must be able to demonstrate that these are respected (accountability principle – Article 5.2. of the GDPR). Furthermore, in her capacity as data controller, she must implement all necessary technical and organizational measures to this end (Article 24 of the GDPR).

28. Article 5.1 b) of the GDPR enshrines the principle of purpose, which requires that data be collected for specified, explicit, and legitimate purposes and not be processed in a manner incompatible with those purposes.

29.

It is against the backdrop of purpose that other principles also enshrined in Article 5 of the GDPR may apply: the principle of minimization – according to which only data that is adequate, relevant, and limited to what is necessary in relation to the purpose may be processed (Article 5.1 c) of the GDPR) – and the principle of limited retention – according to which data may not be retained in a form that allows...

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the identification of the data subjects only for a duration not exceeding that necessary in light of the purposes for which they are processed (Article 5.1 e) of the GDPR).

30. These principles and the obligations that arise for the data controller resonate in terms of rights for the data subject, as in particular, pursuant to Article 17.1 a) of the GDPR, the data subject has the right to obtain from the data controller the erasure of personal data concerning them when such data are no longer necessary in relation to the purposes for which they were collected or processed.

31.

The disputed email address of the complainant is personal data within the meaning of Article 4.1 of the GDPR. It is indeed information relating to an identified or identifiable natural person within the meaning of this article. In this case, it relates to the complainant.

32.

This address, created for professional purposes in the context of the defendant's activities, was intended to allow the complainant to receive and send emails in the context of their activities within the defendant.

33. The Contentious Chamber is of the opinion that in order to comply with the principle of purpose limitation (Article 5.1 b) of the GDPR), combined with the principles of data minimization (Article 5.1 c) of the GDPR) and storage limitation (Article 5.1 e) of the GDPR), it is the responsibility of the data controller to block the email accounts of holders who have ceased their functions no later than the day of their effective departure. This blocking must occur after they have been notified in advance and after an automatic message has been inserted. This automatic message will inform any subsequent correspondents that the data subject no longer holds their position within the company and will provide the contact details of the person (or the generic email address) to reach in their place, for a reasonable period (initially 1 month). Depending on the context and, in particular, the level of responsibility held by the data subject (such as a position of managing director or another key role that they are the sole holder of, as in this case), a longer period may be accepted, ideally not exceeding 3 months. This extension must be justified and carried out with the consent of the data subject or, at a minimum, after notifying them. An alternative solution must also be sought and implemented as quickly as possible without necessarily waiting for the ultimate deadline of this extension.

34. The Contentious Chamber believes that this approach should be favored over the automatic forwarding of emails to another company email address. In the case of automatic forwarding, especially without informing the sender of the message, there is indeed no control over incoming emails or "in". Furthermore, in this case, potentially sensitive private information could

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to be disclosed without the knowledge not only of the person concerned but also of the sender of the message.

35. Beyond this period (of 1 to 3 months at most), the email account of the person concerned will be deleted.

29.

The complainant having been dismissed by the defendant in October 2020, the Contentious Chamber believes that the processing of this data should have ceased at that date or, at most, given the role held by the complainant, within a reasonable period from that date. The Contentious Chamber is of the opinion that this period could have varied from 1 to 3 months, provided that the senders of messages were notified that this email address was no longer

active, without automatic forwarding of sent emails.

36. It follows from the documents of this procedure that the complainant's address remained active for at least 5 months after the cessation of his activities within the defendant, from which the dismissal decision originated, with the establishment of an automatic message informing senders of messages directed to the complainant's email address that he was no longer working for it and that a new address should now be used.

37.

In support of the above, and notwithstanding the quality of the automatic message put in place, the Contentious Chamber concludes that Article 5.1 b), combined with Article 5.1 c) and e) of the GDPR

was not respected by the defendant due to the excessive duration of the retention of the complainant's email address. The Contentious Chamber believes that the context of the pandemic and the various circumstances invoked by the defendant cannot justify this delay (see also *infra* point 55). While the management of the resumed files may not have been fully achievable by the complainant's successors, the issue of retaining his personal email address beyond 3 months is distinct from that.

II.3. Regarding compliance with the requirement of a lawful basis (Article 6 of the GDPR)

II.3.1. The viewpoint of the SI and the parties

38. According to its investigation report, the SI indicates that a professional email address such as that of the complainant may remain active for a certain period (finding 1) for the purpose of ensuring

4 In its Recommendation CM/Rec(2015)5 on the processing of personal data in the context of employment, the

Committee of Ministers of the Council of Europe states in principle 14.5 the following: when an employee leaves their job,

the employer should take technical and organizational measures to ensure that the employee's email account is

automatically deactivated. If the content of the email account needs to be retrieved for the proper functioning of the

organization, the employer should take appropriate measures to recover its content before the employee's departure and, if possible,

in their presence. The explanatory memorandum of the recommendation further specifies (point 122) that in these situations where the

employee leaves the organization, employers must deactivate the account of the former employee so as not to have access to their

communications after their departure. If the employer wishes to retrieve the content of the employee's account, they must take the

necessary measures to do so before the employee's departure and preferably in their presence. This sectoral recommendation, which complements

the Convention for the protection of individuals with regard to the automated processing of personal data (STE 108), illustrates how the

principles of purpose, minimization, and proportional retention, enshrined by both this Convention and the GDPR, must be applied.

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the proper functioning of the business and the continuity of its services in support of the legitimate interest of the data controller in compliance with the conditions of Article 6.1. f) of the GDPR. Beyond this period, the SI is of the opinion that no legal basis allows for the continuation of the processing.

Therefore, the SI concludes that the retention of the disputed email address for more than 5 months (from October 2020 (dismissal of the complainant) to at least March 2021 (investigation reports)) is excessive and that no legal basis justified the continued processing of this data during that entire period. The SI thus finds that there has been a breach of Article 6.1 of the GDPR by the defendant.

39. The complainant disputes any legitimate interest of the defendant in continuing to process his

personal email address, arguing that it would have sufficed for the latter to inform the co-owners, via the company's generic address, that the property manager had changed and to provide them with the contact details of the complainant's successor. The complainant adds that a legal expert was hired the day after his dismissal, complementing the staff of the defendant's sister company to which the files he was handling were transferred. This sister company had, in addition to administrative staff (...), another manager tasked with gradually taking over his files. The reception and follow-up of client calls as well as secretarial work were carried out by a part-time secretary. The defendant's argument that he was the only employee cannot therefore be upheld.

40. The defendant believes it can rely on its legitimate interest (Article 6.1. f) of the GDPR) to continue its activities to justify the disputed processing beyond a duration of 3 months, given the specific circumstances of the case already mentioned. According to it, there has therefore been no violation of Article 6.1. of the GDPR on its part.

II.3.2. The view of the Litigation Chamber

41. Article 6.1 of the GDPR requires that any processing be based on a legal basis. In other words, the data controller cannot process data without relying on one of the legal bases listed in Article 6.1 of the GDPR, which embodies the principle of legality set out in Article 5.1 a) of the GDPR.

42. The Litigation Chamber has, in light of the preceding developments, found that the purpose for which the data constituting the email address was processed ceased with the termination of the complainant's activities with the defendant. Pursuing a legitimate interest in compliance with the conditions of Article 6.1 f) of the GDPR, the address may, as indicated by the SI, remain active for a certain period to ensure the proper functioning of the business and the continuity of the defendant's services. Beyond this period, no legal basis allows for the continuation of the processing.

43. The Litigation Chamber recalls that in order to rely on the legal basis of "legitimate interest" under Article 6.1.f) of the GDPR, the data controller must,

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the first defendant in this case must demonstrate that a) the interest it pursues through the processing of the concerned data can be recognized as legitimate (the "purpose test"); b) that the proposed processing is necessary to achieve this interest (the "necessity test"); and c) that the weighting of this interest against the interests, freedoms, and fundamental rights of the concerned individuals weighs in its favor or in favor of the third party (the "balancing test").

44. The Contentious Chamber will verify whether, in this case, these 3 tests are satisfied regarding the disputed processing.

Purpose Test

45. The Contentious Chamber recalls that in order to be qualified as "legitimate," the interest pursued by the data controller (or the third party, but this is not the case in the present instance) must be lawful under the law, determined in a sufficiently clear and precise manner, be real and current, and not fictitious or hypothetical (purpose test).

46. In this case, the Contentious Chamber is of the opinion that the use of the complainant's email address for a brief period intended to ensure business continuity and contacts with the managed co-ownerships while implementing transitional measures constitutes a legitimate interest on the part of the defendant.

Necessity Test

47. Regarding the necessity test, the Contentious Chamber recalls that the Court of Justice of the European Union (CJEU) has ruled, among other things, in the "TK" judgment on this condition of necessity of processing, emphasizing the strict interpretation of this condition, which is not specific to Article 6.1(f) of the GDPR but common to all the lawful bases listed in Article 6.1 of the GDPR, except for the consent provided for in Article 6.1(a) of the GDPR.

48. The CJEU also notes that the condition regarding the necessity of processing must be examined in conjunction with the so-called "data minimization" principle enshrined in Article 6, paragraph 1, under c), of Directive 95/46, according to which personal data must be "adequate, relevant, and not excessive in relation to the purposes for which they are collected and for which they are subsequently processed."

49. The CJEU has also clarified that if there are realistic and less intrusive alternatives to the

processing carried out, this processing is not "necessary." In other words, the

5 Regarding the second condition set out in Article 7, under f), of Directive 95/46, relating to the necessity of resorting to the processing of personal data for the realization of the legitimate interest pursued, the Court recalled that exceptions and restrictions to the principle of the protection of personal data must operate within the limits of what is strictly necessary (judgment of May 4, 2017, *Rīgas satiksme*, C-13/16, EU:C:2017:336, paragraph 30 and case law cited).

6 This condition requires the referring court to verify that the legitimate interest of the data processing pursued by the surveillance in question, which essentially consists of ensuring the security of property and individuals and preventing the occurrence of offenses, cannot reasonably be achieved as effectively by other means.

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The data controller must ensure that there is no less intrusive means of achieving its objective than implementing the proposed processing (for example, a device that does not process personal data, or a different processing that is more protective of the right to privacy and the protection of personal data of the data subject).

50. This case law formulated in relation to Articles 7 and 6 of Directive 95/46/EC remains relevant to this day. Article 6.1 of the GDPR indeed reiterates the terms of Article 7 of Directive 95/46/EC - the legitimate interest of the data controller being retained (Article 7(f) of Directive 95/46/EC and Article 6.1(f) of the GDPR), albeit in somewhat different terms. Article 5.1(c) of the GDPR concerning the principle of minimization reinforces the terms of Article 6.1(c) of Directive 95/46/EC to which the CJEU also refers. The context of "video surveillance" in the TK judgment is certainly distinct from the context in which the disputed processing falls in this case. However, this does not justify disregarding the principles set forth by the CJEU regarding the conditions of legitimate interest as a basis for lawfulness. These requirements are expressed in general terms applicable across all contexts.

51.

In this case, the Contentious Chamber is of the opinion that the processing of the complainant's email address can be qualified as necessary for the realization of the interest pursued by the defendant, if only to allow the receipt of messages still sent to this address and in response to them, to inform the senders of the complainant's departure and the subsequent communication modalities following this departure.

Balancing Test

52.

The Contentious Chamber recalls that, in addition to the two aforementioned conditions, Article 6.1(f) of the GDPR can only be invoked if the interests or the fundamental rights and freedoms of the data subject do not prevail over the interest pursued by the data controller or the third party. In other words, the data controller must conduct a balancing exercise, weighing the rights and interests at stake, and verify in this context that the interests (commercial, property security, anti-fraud, etc.) it pursues do not create an imbalance to the detriment of the rights and interests of the individuals whose data is being processed. If the interests and rights of these individuals prevail, Article 6.1(f) of the GDPR cannot be used.

53. Concretely, the data controller must first identify the consequences of all kinds that its processing may have on the data subjects: on their private lives but also, more broadly, on all the rights and interests covered by the

less intrusive to the freedoms and fundamental rights of the data subjects, particularly the rights to respect for private life and to the protection of personal data guaranteed by Articles 7 and 8 of the Charter." It is the Contentious Chamber that emphasizes this.

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protection of personal data. This involves assessing the degree of intrusion of the proposed processing into the individual sphere, by measuring its impact on the privacy of individuals (processing of sensitive data, processing concerning vulnerable persons, profiling, etc.) and on their other fundamental rights (freedom of expression, freedom of information, freedom of conscience, etc.), as well as the other concrete impacts of the processing on their situation (monitoring or surveillance of their activities or

movements, exclusion from access to services, etc.). These impacts must be measured in order to determine, on a case-by-case basis, the extent of the intrusion caused by the processing in the lives of individuals. The principle of data minimization will also be taken into account.

54. The data controller must then consider, in weighing its legitimate interest against the rights and interests of the individuals concerned, the "reasonable expectations" of those individuals. This consideration is essential for processing that can be carried out without the prior consent of the individuals: in the absence of a positive and explicit act on their part, the legitimate interest requires not to surprise individuals in the modalities of implementation as well as in the consequences of the processing.

55. Generally speaking, regarding the continuation of processing a professional email address after the departure of an employee or other actor of the company, the Contentious Chamber is of the opinion, as reiterated by the SI in its investigation report and in point 33 of this decision, that it is appropriate to set up an automatic message informing any correspondent that the individual concerned (here the complainant) no longer holds their position within the company and to provide as soon as possible the contact details of the person (or the generic email address) to be contacted in their place, for a reasonable period (initially 1 month). Since the complainant has been dismissed, it is important to clarify the situation as soon as possible and not to create confusion or expectations that he would no longer be able to meet due to his departure. Depending on the context and, in particular, the degree of responsibility exercised by the individual concerned (such as a delegated administrator role or another key position that he or she is the only one to hold as in this case), a longer period may be accepted, ideally not exceeding 3 months. Even during a pandemic, as claimed by the defendant to justify an extension of this period, the Contentious Chamber considers that extending this period beyond 3 months (which already constitutes an extension of the initial 1-month period intended to express the appropriate balance between the interests of the data controller and the individual concerned) is not justified in this case, especially since, as the Contentious Chamber will note in the following paragraphs, this extension was made without informing the complainant or communicating the reason for this extension, even though he opposed it. The Contentious Chamber believes that 5 months constitutes, even in this case, an excessive duration in light of the rights and freedoms of the complainant, all

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particularly with regard to the principle of minimization to which the defendant is bound, including in its assessment of the appeal under Article 6.1. f) of the GDPR.

Conclusion

56. In conclusion, the Contentious Chamber can only note that no legal basis allowed the defendant to continue processing the complainant's email address. There has therefore been a breach of Article 6.1 of the GDPR on its part.

II.4. Regarding the follow-up to the complainant's request for deletion (Articles 12.3, 12.4, and 17.1 of the GDPR)

II.4.1. The viewpoint of the SI and the parties

57. As mentioned above, the SI notes a breach of Articles 12.3 and 12.4 of the GDPR on the part of the defendant in that it failed to respond to the complainant's request for deletion dated November 11, 2020, the circumstances invoked by the defendant not undermining this finding.

58. Similarly, the complainant denounces this total lack of response. None of the arguments put forward by the defendant seem to him to be valid. The argument of the hasty cessation of its activities cannot be upheld since it is a decision that comes from the defendant itself. The argument concerning the resumption of activities by a different management cannot be upheld either, as this resumption occurred 7 months before his dismissal. The complainant contests any errors made in the context of his services. Finally, the complainant emphasizes that the commitments of the new management were made under the pressure of the services of the APD while the complaint was pending and not spontaneously.

59. For its part, the defendant does not contest that it did not respond to the complainant's request dated November 11, 2020, for the deletion of his professional email address [professional email address of X]. In addition to the context of the pandemic and other circumstances already mentioned,

the defendant insists that it did not remain inactive as it implemented an automatic response system for the complainant's email address and then disabled it. It also worked on replacing all posters and plaques containing the complainant's contact details in the residences it managed. Finally, it indicates that it verified that the diversion of emergency calls to the complainant's private phone was indeed stopped.

II.4.2. The viewpoint of the Contentious Chamber

60. The Contentious Chamber notes that the defendant did not comply with Article 12.4 of the GDPR, which states that "if the controller does not respond to the request made by the data subject, it shall inform the data subject without delay and at the latest within one month of receiving the request of the reasons for its inaction and the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy."

61. Indeed, as soon as it receives a request for the exercise of the rights of a data subject (here the complainant), the data controller (here the defendant) is always required to respond to the data subject:

- Either by providing information on the measures taken in response to the request as soon as possible and in any case within one month of receiving the request in accordance with the provisions of Article 12.3 of the GDPR. If necessary, this period may be extended by two months, taking into account the complexity and number of requests. In this case, the controller must nonetheless inform the data subject of this extension and the reasons for the delay within one month of receiving the request.
- Or, as recalled above, if it believes it should not respond to the request made by the data subject (Article 12.4), it must inform the data subject without delay and at the latest within one month of receiving the request of the reasons for its inaction and the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy.

62. In other words, the data subject must never be left without any response, regardless of the controller's intention regarding the follow-up it gives or intends to give to the request for the exercise of a right addressed to it.

63. In this case, it is undisputed that the defendant refrained from responding to the complainant's request for deletion dated November 11, 2020.

64. The circumstances already invoked by the defendant related to workload, the particular context of the pandemic, or the consequences of the complainant's hasty departure do not eliminate this breach. At most, these circumstances could be taken into account by the Contentious Chamber in determining the appropriate sanction for the established breach.

65. There has therefore been a violation of Article 12.4 of the GDPR on the part of the defendant, which, believing itself justified (which it is not – see above) in continuing to process the complainant's email address, and consequently in refusing his request for deletion, nonetheless should have responded to him and explained the reasons for this refusal as well as informed him of the possibility of lodging a complaint with the APD and seeking a judicial remedy.

66. Finally, as the Contentious Chamber has already stated above, the principles of purpose, minimization, and limitation of retention, as well as the obligations arising therefrom...

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for the data controller, resonates in terms of rights for the data subject. In the absence of the data controller complying with these obligations spontaneously, given the cessation of the processing purpose (Article 5.1. b) and e) of the GDPR), the data subject may obtain erasure by exercising the right recognized to them in Article 17.1 a) of the GDPR. Under this provision, they indeed have the right to obtain from the data controller the erasure of personal data concerning them when such data is no longer necessary for the purposes for which it was collected or processed.

67. Notwithstanding the complainant's request in this regard, the defendant has belatedly complied with this request for erasure once the complaint was pending before the Data Protection Authority (DPA) and in violation of Articles 5.1.b) of the GDPR, combined with Articles 5.1. c) and 5.1. e) of the GDPR (point 37), as well as Article 6.1 of the GDPR (point 55).

68. In doing so, the defendant has committed a breach of Article 17.1 combined with Article 12.4 of the GDPR.

II.5. Additional remarks

69. The Litigation Chamber notes that the defendant has taken the necessary measures to inform the security company that the complainant's phone number should no longer be called in case of an incident, as the latter has left the company. Generally, it was the defendant's responsibility to inform those to whom the complainant's data had been communicated in the exercise of their functions that the complainant was no longer exercising them, ideally and if possible, proactively, but in any case as soon as the complainant made the request.

70. For the record, Article 19 of the GDPR provides that "the data controller shall notify each recipient to whom the personal data have been communicated of any rectification or erasure of personal data or any restriction of processing carried out in accordance with Article 16, Article 17, paragraph 1, and Article 18, unless such communication proves impossible or involves disproportionate effort. The data controller shall provide the data subject with information on these recipients if the data subject requests it."

71. Regarding the signs displaying the complainant's contact details posted in the various buildings for which they were responsible, the Litigation Chamber also notes that the complainant's contact details as displayed—constituting personal data concerning them within the meaning of Article 4.1 of the GDPR—have gradually been erased and replaced by a general contact address.

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III. Regarding corrective measures and sanctions

72. Under Article 100 of the LCA, the Litigation Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the data subject to exercise these rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance with processing requirements;
- 10° order the rectification, restriction, or erasure of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose fines;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another state or international organization;
- 15° refer the case to the public prosecutor of the Brussels Court, who will inform them of the follow-up to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

73. In its conclusions, the defendant indicates that the new management of the company is, more than ever, committed to complying with data protection regulations. It states that it has hired a part-time lawyer since the reported incidents. It also indicates that it has implemented an internal policy for the use of IT tools intended for employees and emphasizes that this policy will be an integral part of the new work regulations currently being implemented as of the date of sending its conclusions. As part of the overall reflection aimed at compliance with the GDPR, for which the recruited lawyer is notably responsible, a privacy policy...

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intended for employees as well as a privacy policy intended for clients have been drafted.

74.

The Disciplinary Chamber acknowledges these steps.

75.

The breaches of Article 5.1 b) of the GDPR - combined with Article 5.1 c) and e) of the GDPR – (point 37), Article 6.1 of the GDPR (point 55) as well as Article 17.1 combined with Article 12.4 of the GDPR (point 68) being established, the Disciplinary Chamber decides to issue a reprimand to the defendant

for the aforementioned breaches.

76.

Without calling into question the defendant's claims regarding the projects initiated in 2021 already, the Disciplinary Chamber nonetheless attaches to this reprimand an order for compliance. Taking into account the time elapsed since the deadline for the conclusions in which the defendant reports its compliance and its commitments and projects, it orders the defendant to communicate to it the policy addressing the issue of closing electronic mail accounts in the event of the departure of one of its administrators, employees, and other potential functions within one month of this decision in accordance with its provisions.

77.

The Disciplinary Chamber is of the opinion that these are the appropriate, effective, and sufficiently deterrent sanctions in light of the circumstances of the case in which past breaches are established but in which, moreover, the complainant's professional email address has, ultimately, (according to the findings of the SI) been deleted and the defendant has indicated to the Disciplinary Chamber that it has taken adequate measures to prevent the identified violations from recurring in the future.

IV. Publication of the decision

78. Given the importance of transparency regarding the decision-making process of the Disciplinary Chamber, this decision is published on the website of the Data Protection Authority (DPA). However, it is not necessary for this purpose that the identifying data of the parties be directly mentioned.